Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Monday, October 21, 2024

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 1:01 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That the minutes of the Regular Meeting of Council held on September 16, 2024 be adopted.
CARRIED

4. Question Period

Mayor Collier invited questions on agenda items from those present.

5. Delegations, Presentations, and Public Meetings

5.1 Public Meeting: Official Plan Amendment Application OPA24-A11 Zoning By-law Amendment Application Z15/24 154 Rossland Road East

Maylor Collier noted that the proposed by-laws namely Official Plan Amendment Application OPA24-A11 and Zoning By-law Amendment Application Z15/24 were brought forward under the authority of Section 284.11.1 of the *Municipal Act* and in accordance with Ontario Regulation 580/22, “Provincial Priorities”.

Mayor Collier summarized the fundamental elements of the proposed by-laws.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

Therese Biggs, Ajax resident, asked questions regarding to impacts to her property and zoning. Duane Simon, Ajax resident, expressed concerns related to the public consultation process. Mayor Collier responded to concerns from the delegates.

David Park, Principle & CEO, Pickering Christian School, expressed concerns regarding process, impacts to school capacity, traffic impacts and congestion, Rossland Road construction delays, building height, building size, number of units, and shadow impacts. Mayor Collier responded to concerns from the delegate.

There being no further questions or comments from the public, Mayor Collier closed the public meeting.

Council Members asked questions related to the proposed development. Geoff Romanowski, Director of Planning & Development Services and Denis Tarsky, Ledim Developments Ltd., owner/applicant, responded to questions from Council Members.

5.2 **Public Meeting: Official Plan Amendment Application OPA24-A12**
Zoning By-law Amendment Application Z16/24
Vacant Lands Immediately North of 1901 Harwood Avenue North

Maylor Collier noted that the proposed by-laws namely Official Plan Amendment Application OPA24-A12 and Zoning By-law Amendment Application Z16/24 were brought forward under the authority of Section 284.11.1 of the *Municipal Act* and in accordance with Ontario Regulation 580/22, “Provincial Priorities”.

Mayor Collier summarized the fundamental elements of the proposed by-laws.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

Dave Powell, Ajax resident, expressed concerns regarding neighbourhood beautification, traffic impacts and congestion, building location, building size, and community safety. Council Members responded to concerns from the delegate.

Ankit Masalia, Ajax resident, asked questions related to construction timelines, and strategies to mitigate railway noise and vibration.

Bart Sarzala, Ajax resident, expressed concerns related to increased density, shadow impacts, community safety, environmental impacts, traffic impacts, inadequate infrastructure, and decreased property values. Mayor Collier responded to concerns from the delegate.

There being no further questions or comments from the public, Mayor Collier closed the public meeting.

D. Tarsky responded to questions and concerns from the delegates.

Council Members asked questions related to the proposed development. D. Tarsky and G. Romanowski, responded to questions from Council Members.

5.3 **Public Meeting: Official Plan Amendment Application OPA24-A13**
Zoning By-law Amendment Application Z17/24
493 Bayly Street West

Maylor Collier noted that the proposed by-laws namely Official Plan Amendment Application OPA24-A13 and Zoning By-law Amendment Application Z17/24 were brought forward under the authority of Section 284.11.1 of the *Municipal Act* and in accordance with Ontario Regulation 580/22, “Provincial Priorities”.

Mayor Collier summarized the fundamental elements of the proposed by-laws.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

There being no questions or comments from the public, Mayor Collier closed the public meeting.

Council Members asked questions related to the proposed development. D. Tarsky responded to questions from Council Members.

6. Correspondence

Moved by: N. Henry
Seconded by: S. Lee

That the report dated October 21, 2024 containing Items of Correspondence be received for

information.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, October 7, 2024

Moved by: L. Bower
Seconded by: J. Dies

That the Community Affairs & Planning Committee Report dated October 7, 2024 be adopted.

CARRIED

7.2. General Government Committee Report

7.2.1 General Government Committee, October 15, 2024

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the General Government Committee Report dated October 15, 2024 be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

Moved by: S. Lee
Seconded by: N. Henry

That the Summary of Advisory Committee Activities Report dated October 21, 2024, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

7.4 Departmental Reports

7.4.1 PDS-2024-21: Zoning Our Future – Town of Ajax Comprehensive Zoning By-law Review: Statutory Public Meeting and Consultation Update

Deferred to October 21, 2024 Council from October 7, 2024 Community Affairs & Planning Committee

Council Members asked questions related to the proposed amendment. Sean McCullough, Supervisor, Policy Planning & Research, responded to questions from Council Members.

Main Motion

Moved by: J. Dies
Seconded by: L. Bower

That staff be directed to amend the definition of height to measure the height of the house from the peak of the house, instead of the midpoint of a peaked roof, and to bring an overview of the changes for consideration at a future meeting of the Community Affairs and Planning Committee.

Amendment

Moved by: L. Bower
Seconded by: S. Lee

That the motion be amended to read as follows:

That staff be directed to report to Council on amending the Zoning By-law to measure the height of homes from the peak of the house, instead of the midpoint of a peaked roof, for consideration at a future meeting of the Community Affairs and Planning Committee.

CARRIED

Main Motion as Amended

Moved by: J. Dies
Seconded by: L. Bower

That staff be directed to report to Council on amending the Zoning By-law to measure the height of homes from the peak of the house, instead of the midpoint of a peaked roof, for consideration at a future meeting of the Community Affairs and Planning Committee.

CARRIED

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

7.4.2 **CS-2024-17: Parking Exemption for Commercial Avenue Neighbourhood**

Council Members asked questions related to the contents of the report. Christie McLardie, Director of Public & Strategic Affairs, G. Romanowski, and D. Hannan, Manager of By-law Services, responded to questions from Council Members.

Moved by: L. Bower
Seconded by: J. Dies

That the report entitled “Parking Exemption for Commercial Avenue Neighborhood” be received for information.

CARRIED

Mayor Collier resumed the Chair.

8. Regional Councillors’ Report

Regional Councillor Members provided updates from the Region related to the 2025 Business Plans and Budget Guideline.

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That the Regional Councillors’ Reports of October 21, 2024 be received for information.

CARRIED

9. Business Arising from Notice of Motion

9.1 **Amendments to the Procedure By-law**

Mayor Collier and Councillor Bower introduced the motion and reviewed its contents. Council Members asked questions related to the motion. Jaclyn Grossi, Municipal Clerk and Mayor Collier, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: L. Bower

WHEREAS Section 238 (2) of the Municipal Act, 2001 as amended requires Council to pass a procedure by-law governing the calling, place and proceedings of meetings;

AND WHEREAS amendments to the Procedure By-law are desirable for reasons of transparency and to clarify and strengthen expectations of all meeting participants;

NOW THEREFORE BE IT RESOLVED THAT:

The redline changes to the Procedure By-law, as provided in Attachment 1, be adopted; and

The updated Procedure By-law be presented to Council for approval.

CARRIED

9.2 **Temporary Expansion of the Occasional-Use Parking Permit System**

Councillor Henry and Councillor Bower introduced the motion and reviewed its contents. Council Members asked questions related to the motion. Councillor Bower responded to questions from Council Members.

Moved by: N. Henry
Seconded by: L. Bower

WHEREAS Ajax residents have expressed that their parking needs are changing and they would like more parking opportunities for visiting friends and family, and options when their driveways are inaccessible due to landscaping and home construction projects;

AND WHEREAS a Town-Wide Parking Master Plan to identify needs and solutions is scheduled to be initiated in 2026;

AND WHEREAS an interim solution, such as expansion of existing programs, could support residents' parking needs until the Master Plan is completed;

AND WHEREAS the Town offers a program, the Occasional-Use Parking Permit (OUPP) system, which allows residents to apply online for up to 17 OUPPs per year, per license plate (first 5 permits are free, and the following 12 are $12 per permit plus tax), to park on residential streets for 24 hours, with some restrictions;

NOW THEREFORE BE IT RESOLVED THAT:

By-law staff be directed to temporarily increase the number of parking permits available through the Occasional-Use Parking Permit system to provide 10 free parking permits and 18 paid parking permits per year, per license plate, effective January 1, 2025, until the Parking Master Plan is completed.

CARRIED

9.3 **Requesting the Permanent Removal of Tolls on the Provincially Owned Portion of Highway 407**

Councillor Henry and Regional Councillor Crawford introduced the motion and reviewed its contents.

Moved by: N. Henry
Seconded by: M. Crawford

WHEREAS Highway 407 from Brock Road in Pickering to Highway 35/115 is provincially owned and tolls are set by the province;

AND WHEREAS the province passed legislation, Bill 162, the Get It Done Act, 2024, to ban new tolls from provincially owned highways;

AND WHEREAS Highway 413, a timesaving highway running through York, Peel & Halton Regions, is being built at a projected cost of $10-billion and is included in the legislation to ban new tolls

AND WHEREAS the provincially owned portion of Highway 407, which is almost exclusively in Durham Region, is excluded from this legislation and is the only tolled provincially owned highway in Ontario, resulting in unfair economic impacts to Durham Region residents and businesses;

AND WHEREAS the Province of Ontario has previously removed tolls on Highways 412 and 418 located within Durham, demonstrating the willingness to removing existing unfair tolls on provincially owned highways and should therefore include the provincial 407 as part of the proposed legislation;

AND WHEREAS the removal of tolls on the provincial Highway 407 would reduce the cost of living for Durham Region residents and drive economic growth, while ensuring fair and equitable treatment across all provincial 400-series highways;

AND WHEREAS the Councils of Oshawa, Whitby, Pickering and Durham Region have passed motions requesting that the province remove tolls on the provincially owned portion of Highway 407;

NOW THEREFORE BE IT RESOLVED THAT:

Ajax Council hereby requests that the Province of Ontario remove tolls from the provincially

owned portion of Highway 407; and

A copy of this resolution be sent to the Honourable Prabmeet Sarkaria, Minister of Transportation, all local Durham MPPs, and all Durham local area municipalities.

CARRIED

10. By-laws

Council Members asked questions regarding By-law numbers 65-2024 to 70-2024. G. Romanowski and Mayor Collier, responded to questions from Council Members.

Moved by: L. Bower
Seconded by: J. Dies

That By-law numbers 64-2024 and 71-2024 to 76-2024 be read a first, second and third time and passed.

CARRIED

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That By-law numbers 65-2024 to 70-2024 be read a first, second and third time and passed.

CARRIED
on 1/3rd

11. Notice of Motion

None.

12. New Business - Notices & Announcements

Council Members highlighted upcoming community events and matters of community interest.

13. Confirming By-Law

Moved by: N. Henry
Seconded by: S. Lee

That By-law number 77-2024 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on October 21, 2024, be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: L. Bower
Seconded by: J. Dies

That the October 21, 2024 meeting of the Council of the Town of Ajax be adjourned (3:43 p.m.)

CARRIED

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Mayor and CEO

_____
Clerk